

# HOUSE . . . . . No. 1091

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Christine P. Barber*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to pharmacists as healthcare providers.

PETITION OF:

| NAME:                      | DISTRICT/ADDRESS:     | DATE ADDED:      |
|----------------------------|-----------------------|------------------|
| <i>Christine P. Barber</i> | <i>34th Middlesex</i> | <i>1/16/2025</i> |

# HOUSE . . . . . No. 1091

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By Representative Barber of Somerville, a petition (accompanied by bill, House, No. 1091) of Christine P. Barber relative to pharmacists as healthcare providers. Financial Services.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE HOUSE, NO. 4066 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to pharmacists as healthcare providers.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Chapter 94C, as appearing in the 2022 Official Edition, is hereby amended by inserting,  
2   after section 19F, the following section:-

3           Section 19G. (a) Notwithstanding any general or special law to the contrary, a pharmacist  
4   may order, test, screen, and treat the following health conditions: influenza, streptococcal  
5   infections, COVID-19 or any other emerging and existing public health threats identified by the  
6   department if permitted by an order, rule, or regulation.

7           b) The department shall establish standard procedures for pharmacists to test, screen and  
8   initiate treatment for qualified health conditions.

9           (c) A pharmacist who orders, tests, screens, or treats health conditions under this section  
10   may use any test that may guide clinical decision making that is waived under the federal

11 Clinical Laboratory Improvement Amendments of 1988, or the federal rules adopted thereunder,  
12 or any established screening procedure that is established via a statewide protocol.

13 (d) A pharmacist may delegate the administrative and technical tasks of performing a test  
14 waived by the federal Clinical Laboratory Improvement Amendments of 1988 to a pharmacy  
15 technician acting under the supervision of the pharmacist.

16 (e) This section prohibits the denial of reimbursement under health benefit plans for  
17 services and procedures performed by a pharmacist that are within the scope of the pharmacist's  
18 license and would be covered if the services or procedures were performed by a physician, an  
19 advanced practice nurse, or physician's assistant. An insurance carrier or pharmacy benefit  
20 manager shall develop adequate provider and consult codes as authorized by this act for  
21 pharmacy compensation.